

SENATE BILL 2563

By Bowling

AN ACT to amend Tennessee Code Annotated, Title 68,
Chapter 30, relative to anatomical gifts.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 68, Chapter 30, Part 1, is amended by adding the following as a new section:

68-30-121. Contacting decedent's family regarding anatomical gifts prohibited.

(a) As used in this section, "documented anatomical gift authorization" means an authorization for an anatomical gift of a decedent's body or body part that is made by the decedent voluntarily while living and legally competent, and is documented by being:

- (1) In the form of a signed writing;
- (2) A digital record in a state-recognized donor registry;
- (3) Expressed in a legally executed advance directive; or
- (4) In accordance with § 68-30-105.

(b) A procurement organization or a contractor with, representative for, or other person or entity affiliated with a procurement organization shall not contact, solicit, or attempt to obtain consent from a decedent's family member, next of kin, or legally authorized representative for the purpose of securing an anatomical gift.

(c) The only valid authorization for an anatomical gift is a documented anatomical gift authorization.

(d) If a decedent did not make a documented anatomical gift authorization, then no anatomical gift may be made on the decedent's behalf, and a procurement organization or another person or entity shall not seek such authorization from the decedent's surviving family members.

(e)

(1) A contact made in violation of this section is subject to a civil penalty of not less than:

(A) Fifty thousand dollars (\$50,000) for the first contact; and

(B) An additional penalty of up to two hundred fifty thousand dollars (\$250,000) for a second or subsequent contact.

(2) Each contact in violation of this section constitutes a separate violation subject to a civil penalty as described in subdivision (e)(1).

(3) Any financial benefit received by a person or entity in connection with a violation of this section is subject to forfeiture.

(f)

(1) The department of health shall investigate complaints of violations of this section and refer its findings to the attorney general and reporter for enforcement.

(2) The attorney general and reporter is authorized to enforce this section.

(3) A violation of this section may constitute grounds for suspension or revocation of a procurement organization's authorization to operate within this state.

SECTION 2. Tennessee Code Annotated, Section 68-30-109, is amended by deleting the section and substituting:

This chapter does not permit a family member, next of kin, or legally authorized representative to authorize an anatomical gift when the deceased did not personally authorize such a gift while alive and competent.

SECTION 3. Tennessee Code Annotated, Section 68-30-110, is amended by deleting the section.

SECTION 4. Tennessee Code Annotated, Section 68-30-114(g), is amended by deleting the subsection.

SECTION 5. Tennessee Code Annotated, Section 68-30-108(b), is amended by deleting "or § 68-30-109".

SECTION 6. Tennessee Code Annotated, Section 68-30-108(d), is amended by deleting "or § 68-30-109".

SECTION 7. Tennessee Code Annotated, Section 68-30-114(l), is amended by deleting the subsection and substituting:

(l) In determining whether an anatomical gift has been made, amended, or revoked under this part, a person may rely upon representations of an individual who is an immediate family member or legal representative of the donor or prospective donor, unless the person knows that the representation is untrue.

SECTION 8. Tennessee Code Annotated, Section 68-30-117(b), is amended by deleting "under § 68-30-109".

SECTION 9. Tennessee Code Annotated, Section 68-30-102(5), is amended by deleting the subdivision and substituting:

(5) "Disinterested witness" means a witness other than the spouse, child, parent, sibling, grandchild, grandparent, or guardian of the individual who makes, amends, revokes, or refuses to make an anatomical gift;

SECTION 10. Tennessee Code Annotated, Section 68-30-111(j), is amended by deleting "or § 68-30-110".

SECTION 12. The headings in this act are for reference purposes only and do not constitute a part of the law enacted by this act. However, the Tennessee Code Commission is requested to include the headings in any compilation or publication containing this act.

SECTION 13. This act takes effect July 1, 2026, the public welfare requiring it.